



CRWP-6726-2026

1

119

**IN THE HIGH COURT OF PUNJAB & HARYANA
AT CHANDIGARH**

CRWP-6726-2026**Date of decision: 05.06.2026**

USHA RANI AND ANOTHER

....Petitioners

Versus

STATE OF PUNJAB AND OTHERS

...Respondents

CORAM: HON'BLE MR. JUSTICE ROHIT KAPOOR

Present: Ms. Manpinder Kaur, Advocate
for the petitioners.

Mr. Adeshwar Singh Pannu, AAG, Punjab.

ROHIT KAPOOR, J. (Oral)

1. The present writ petition under Article 226 of the Constitution of India has been filed seeking issuance of a writ in the nature of mandamus directing the official respondents to protect the life and liberty of the petitioners, who are two adult females living together, at the hands of private respondents, who are none other than their family members.

2. Learned counsel for the petitioners seeks protection of life and liberty of the petitioners by contending that both of them are adult females and are living together in a 'live-in relationship' against the wishes of the private respondents and to seek appropriate protection from the authorities, they have submitted a representation dated 28.05.2026 (Annexure P-3), to respondent No.2-Senior Superintendent of Police, Ferozepur, Punjab seeking his help, however, it had been in vain. Learned counsel submits that the petitioners would be satisfied if directions are issued to respondent No.2- Senior Superintendent of Police, Ferozepur, Punjab to look into the aforesaid representation and take



CRWP-6726-2026

2

appropriate steps at the earliest.

3. Notice of motion to respondents No.1 to 3 only.
4. Mr. Adeshwar Singh Pannu, AAG, Punjab accepts notice on behalf of the official respondents.
5. Reliance in this regard can also be placed on judgment of the Supreme Court in ***Devu G Nair vs. State of Kerala and others 2024 SCC Online 351***, wherein Hon'ble Supreme Court has laid down various guidelines for the Courts in dealing with habeas corpus petitions or petitions for police protection by same sex friendship persons, so as to secure fundamental rights and dignity of intimate partners and members of the LGBTQ communities. The relevant guideline, pertaining to the facts of the present case, is reproduced as under:-

“16(j). The Court must acknowledge that some intimate partners may face social stigma and a neutral stand of the land would be detrimental to the fundamental freedoms of the appellant. Therefore, a court while dealing with a petition for police protection by intimate partners on the grounds that they are a same sex, transgender, inter-faith or inter-caste couple must grant an ad-interim measure, such as immediately granting police protection to the petitioners, before establishing the threshold requirement of being at grave risk of violence and abuse. The protection granted to intimate partners must be with a view to maintain their privacy and dignity.”

6. In view of the above, without commenting upon the status of live in relationship of the petitioners, the present petition is disposed of with directions



CRWP-6726-2026

3

to respondent No.2-Senior Superintendent of Police, Ferozepur, Punjab, to look into the aforesaid representation qua the alleged threat perception and take necessary steps, as may be required, in accordance with law, to ensure that the life and liberty of the petitioners is not jeopardized at the hands of the private respondents. However, it is made clear that this Court has not examined the veracity of the assertions made in the representation dated 28.05.2026 (Annexure P-3), which may be considered dispassionately by respondent No.2-Senior Superintendent of Police, Ferozepur, Punjab, while deciding the said representation.

05.06.2026
mohit goyal

(ROHIT KAPOOR)
JUDGE

Whether speaking/reasoned	:	Yes / No
Whether reportable	:	Yes / No